

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 772

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO INDUSTRIAL HEMP; AMENDING SECTION 22-1705, IDAHO CODE, TO ESTABLISH WHEN NEGLIGENT VIOLATIONS OCCUR; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-1705, Idaho Code, be, and the same is hereby amended to read as follows:

22-1705. PRODUCTION, PROCESSING, TRANSPORTATION, AND RESEARCH OF INDUSTRIAL HEMP AUTHORIZED. (1) Production, processing, transportation, and research of industrial hemp are subject to the rules promulgated under this chapter, the state plan, and the 2018 farm bill and the rules promulgated thereunder.

(2) The director must expeditiously promulgate rules that are compliant with the 2018 farm bill in time to allow for the production, processing, transportation, and research of industrial hemp in Idaho under the state plan beginning with the spring 2022 growing season of industrial hemp. Any rule formulated and recommended by the Idaho state department of agriculture regarding the production, processing, transportation, or research of industrial hemp that is broader in scope or more stringent than federal law or regulations as outlined in the 2018 farm bill or that proposes to regulate an activity not regulated by the federal government is subject to the following additional requirements: the notice of proposed rulemaking and rulemaking record requirements under chapter 52, title 67, Idaho Code, must clearly specify that the proposed rule, or portions of the proposed rule, are broader in scope or more stringent than federal law or regulations or regulate an activity not regulated by the federal government and delineate which portions of the proposed rule are broader in scope or more stringent than federal law or regulations or regulate an activity not regulated by the federal government.

(3) Once a state plan is accepted by the secretary of agriculture, the production, processing, transportation, and research of industrial hemp in Idaho will also be subject to the state plan.

(4) The department is authorized to promulgate rules establishing fees and penalties for violations associated with the provisions of this chapter.

(5) No penalty may be imposed against a person unless the person was given notice and opportunity for a hearing pursuant to the Idaho administrative procedure act, chapter 52, title 67, Idaho Code. A person against whom the department has assessed a penalty under this chapter or the rules promulgated pursuant to this chapter may, within thirty (30) days of the final agency action making the assessment, appeal the assessment to the district court of the county in which the violation is alleged to have occurred.

(6) Notwithstanding any provision of this chapter:

1 (a) Rules promulgated under this chapter must be adopted through the
2 negotiated rulemaking process; and

3 (b) The transportation of industrial hemp in interstate commerce may
4 continue subject to the provisions of section 67-2921, Idaho Code.

5 (7) Hemp producers do not commit a negligent violation if:

6 (a) The hemp is produced for the sole purpose of producing grain or
7 fiber;

8 (b) The hemp producer has made reasonable efforts to grow hemp within
9 the acceptable hemp THC level, as defined by rule, and in accordance
10 with Idaho statutes, rules, and the state hemp plan; and

11 (c) The hemp does not have a total THC, as defined by rule, concentra-
12 tion of more than one percent (1%) on a dry weight basis.

13 SECTION 2. An emergency existing therefor, which emergency is hereby
14 declared to exist, this act shall be in full force and effect on and after
15 July 1, 2026.